

Request for counsel — marketplace terms review

To: [Firm / attorney name]

From: [Your name], Minimum Stress Consulting Services LLC

Date: [Date]

Re: Drafting protective clauses and reviewing existing terms for a two-sided marketplace launching in California

1. What we are

Minimum Stress Consulting Services LLC, a California LLC, operates **Minimum Stress** (minimumstress.app), a marketplace where wellness practitioners rent private rooms by the hour from the people who own them.

- **Hosts** are studio, treatment-room and office owners with hours they are not using.
- **Practitioners** are yoga teachers, coaches, therapists and similar independent professionals who see their own clients.
- Practitioners bring their own clients to the session. Those clients are not our users and have no account with us.

We are launching in the San Francisco Bay Area. Live today with a small number of listings.

2. How money moves

- The host sets an hourly rate and receives **100%** of it.
- We add a **20% service fee** on top, charged to the practitioner. The advertised price is all-in — the fee is included in every price shown, in line with SB 478.
- Payment is taken at the time of booking through **Stripe** (Stripe Connect). We never hold card details.
- Funds are held and released to the host approximately **two business days after the session**.
- **Cancellation:** 24 hours or more before the session, the practitioner is refunded everything except the card network's processing fee (roughly \$1.87 on a \$54 booking), which the network retains regardless. Inside 24 hours, the full amount is captured. If the host cancels, the practitioner is refunded in full including that fee.
- A paid subscription ("Pro", \$9.90/month) removes booking limits and returns the processing fee on early cancellation.
- A saved card may be charged again only for damage, extra cleaning or overrun, and only after a dispute process. This is disclosed at checkout where Stripe records the card-on-file mandate.

3. What we do and do not do

We do:

- Take payment, hold it, and pay the host.

- Review a host's proof that they may sublicense their space, and their insurance certificate if provided.
- Release the room's entry instructions and access code to the practitioner shortly before the session.
- Operate a refund and damage-claim process in which a member of staff reads both accounts and decides an outcome.
- Record safety reports and escalate them to a person.

We do not:

- Own, lease or control any of the spaces.
- Provide any medical, therapeutic or health service.
- Verify a practitioner's qualifications, training or fitness to practise.
- Take part in the session itself, or in the practitioner's relationship with their own client.

4. What we already have

Our terms and privacy policy are published at minimumstress.app/terms and [/privacy](https://minimumstress.app/privacy) and are shown in the app before anyone can use it. Both sides must accept before doing anything, and acceptance is recorded with a version number and a server-set timestamp. Hosts additionally acknowledge, per listing, that they hold the legal right to sublicense that space for paid sessions.

The existing text covers: the marketplace relationship, independent-contractor status, the off-platform booking prohibition, health and wellness disclaimers, cancellation and refund policy, reviews and safety, and a privacy policy naming every third-party processor.

5. What we are asking you to draft

Our current terms contain **none** of the following. These are what we would like drafted:

1. **Binding arbitration clause and class action waiver** — enforceable in California, with whatever opt-out and cost-allocation provisions are required for it to survive an unconscionability challenge.
2. **Limitation of liability** — a cap, drafted with California Civil Code §1668 in mind. We understand we cannot disclaim liability for our own fraud, wilful injury or violation of law, and we are not asking you to try.
3. **Indemnification** — users indemnifying us for claims arising from their own conduct, their own clients, and their own compliance obligations.
4. **Governing law and venue.**
5. **Warranty disclaimer** — the platform provided "as is", with the health and wellness disclaimers we already have folded in properly.

6. What we are asking you to review

1. **Worker classification.** Our terms deliberately describe a practitioner as *licensing a room by the hour* and as our customer, never as engaged, hired, or providing services to us. We drafted this with the

AB5 ABC test in mind. Please tell us whether the language holds and where it does not.

2. **Retention of the processing fee on cancellation.** We retain only the actual amount the card network keeps, we add nothing to it, and it is disclosed before payment. Please confirm this is defensible, and tell us how it must be described.
3. **Privacy policy against CCPA/CPRA.** It names every processor, states retention, and lists the rights. Please tell us what is missing and whether we meet the thresholds that trigger the fuller obligations.
4. **Anything a marketplace of this shape ordinarily needs that we have not thought of.** Our particular concern is physical risk: a practitioner and their client are alone in a room belonging to a third party, arranged through us.

7. What we would like from you

- A quote and estimated turnaround for the drafting in section 5.
- A separate quote for the review in section 6, if you would rather scope them apart.
- Your view on whether anything here should stop us taking bookings from members of the public before it is in place.

We have working drafts of some clauses that we are happy to send if reviewing a draft is cheaper than drafting from scratch. We would rather you tell us they are wrong than not see them.

Contact: [your email] · [your phone]

The app: <https://minimumstress.app> · terms at /terms · privacy at /privacy